Sea Waybill · Terms and Conditions

1. Definitions

"BIMCO"	means the Baltic and International Maritime Council.
"Carriage"	means the whole or any part of the operations and services undertaken by Carrier in respect of the Goods covered by this Sea Waybill.
"Carrier"	means the party named on page 2 of this Sea Waybill.
"Container"	includes any container, trailer, transportable tank, flat, or any similar article used to consolidate Goods and any connected equipment.
"Freight"	includes all charges payable to Carrier in accordance with the applicable tariff and this Sea Waybill.
"Goods"	means the whole or any part of the cargo received from the shipper and includes any equipment or Container not supplied by or on behalf of the Carrier.
"Hague Rules"	means the International Convention for the Unification of Certain Rules relating to Bills of Lading of 1924 only.
"Hague-Visby Rules"	means the Hague Rules including the Visby amendments of 1968 and the amendments by the Protocol of 1979.
"Merchant"	includes the booking party, shipper, consignee, receiver of the Goods, and any holder, person or entity owning or entitled to the possession of the Goods.
"Servants or Agents"	includes the owners, managers and operators of any Vessel (other than Carrier), master, officers and crew of the Vessel(s), charterers, slot and space charterers, the Vessel, all underlying carriers, bailees, direct and indirect subcontractors, stevedores, terminal and groupage operators, road and rail transport operators, or any other party employed by or on behalf of Carrier, or whose services or equipment have been used to perform this contract whether in direct contractual privity with Carrier or not.
"US COGSA"	means the US Carriage of Goods by Sea Act 1936.
"Vessel"	means any vessel including but not limited to a main line vessel, feeder ship, barge or any other means of conveyance by water used for the Carriage of the Goods under this Sea Waybill.
"VGM"	means the verified gross mass obtained by one of the permissible methods pursuant to ch. VI, part A, reg. 2 paragraph 4 of SOLAS 1974 (as amended from time to time) and the applicable regulations of the State of the loading port.

2. General Conditions

(1) This Sea Waybill is issued for a contract of Carriage which is not covered by a Bill of Lading or similar document or title.

(2) A signed Sea Waybill is returned to the shipper and a copy of it is applied as an input source document to a computerized system for data transmission of particulars as described on page 2 hereof to the country of destination. Upon receipt of the data so transmitted, Carrier or its agent in the country of destination will forward such data to the consignee and notify party.

(3) Carrier shall not be liable for any loss or damage or delay to or in connection with the Goods or any consequential or indirect damage to Merchant arising unintentionally from erroneous input into the computer system or from wrongful data transmission.

(4) Except as provided specifically herein, this contract of Carriage shall be subject to German law which would have been compulsorily applicable if a Bill of Lading rather than a Sea Waybill had been issued.

(5) The terms and conditions of Carrier's applicable tariff are incorporated herein, including but not limited to terms and conditions relating to demurrage and detention. The provisions relevant to the applicable tariff can be acquired from Carrier or its agents upon request. Carrier's standard tariff may be viewed at https://www.hapag-lloyd.com/en/online-business/quotation/tariffs.html. In case of any inconsistency between this Sea Waybill and the applicable tariff, this Sea Waybill shall prevail.

3. Right of Control, Delivery of Goods

(1) The shipper shall be the only party entitled to give Carrier instructions in relation to the contract of Carriage. Shipper shall be entitled to change the name of the consignee at any time up to the arrival of the Goods at destination, provided it gives Carrier unambiguous notice in writing, or by some other means acceptable to Carrier, and thereby undertaking to indemnify Carrier against any additional expense caused thereby.

(2) (a) The Goods mentioned on page 2 will be delivered after payment of Freight and other charges to the consignee, or to such person who identifies itself as being a representative of the consignee, and such delivery shall constitute due performance of this contract.

(b) Carrier shall be under no liability for wrong delivery if it can prove that it has exercised reasonable care to ascertain that the party claiming delivery is in fact entitled.

4. Sub-Contracting and Indemnity

(1) Carrier shall be entitled to sub-contract on any terms whatsoever the whole or any part of the Carriage, including but not limited to loading, unloading, storing and warehousing.

(2) Merchant hereby agrees that no Servants or Agents are or shall be deemed to be liable with respect to the Goods or the Carriage as Carrier, bailee or otherwise, and agrees not to file any claim against any Servant or Agent seeking to impose liability in connection with the Carriage. If any claim is made against any of the Servants or Agents, Merchant shall indemnify Carrier against all consequences thereof. Without prejudice to the foregoing, all rights, exemptions, defenses, and limitations of and exoneration from liability provided by law or by these Terms and Conditions including the jurisdiction clause, shall be available to every Servant or Agent and Vessel which shall be entitled to enforce same against Merchant.

(3) The provisions of Clause 4 (2) shall extend to claims of whatsoever nature against other persons carrying space on the carrying Vessel.

5. Carrier's Responsibility

5.1 Save as otherwise provided herein, Carrier shall be responsible for loss of or damage to Goods under the following circumstances only:

(1) Port-to-Port Shipment

(a) If any loss or damage occurs to the Goods between the time of loading on the Vessel and the time of discharge from the Vessel, the responsibility of Carrier shall be determined in accordance with German law making the Hague Rules compulsorily applicable. The BIMCO Paramount Clause General shall be incorporated herein and obtainable from Carrier or its agents upon request or at www.bimco.org.

(b) However, if the Sea Waybill covers a shipment from or to the USA, US COGSA shall govern and apply from loading the Goods on the Vessel until discharge. US COGSA shall also govern and apply during all times before the Goods are loaded on or after they are discharged from the Vessel.

(c) Carrier shall not be responsible for any fault of its personnel and of the Vessel's crew (as defined in Sec. 478 German Commercial Code) in cases of damage or loss caused by fire or explosion on board the Vessel or caused by the navigation or management of the Vessel, in the latter case save for damage or loss caused when executing measures which were predominantly taken in the interest of the Goods ("Error in Navigation and Fire Defenses").

(d) Carrier shall not be responsible for any fault of other persons involved in the navigation or management of the Vessel, in particular pilots on board of the Vessel or the crew of a tug boat assisting the Vessel, in cases of damage or loss caused by the navigation or the management of the Vessel, save for damage or loss caused when executing measures which were predominantly taken in the interest of the Goods.

(e) The Carrier shall have no liability whatsoever for any loss or damage to the Goods, howsoever caused, if such loss or damage arises before acceptance by the Carrier of custody of the Goods or after the Carrier tenders the Goods for delivery. Carrier is not responsible for any acts or omissions of any terminal operator to which the Goods were submitted.

(f) Any compensation will be calculated by reference to the value of the Goods at the place and the time they are delivered to Merchant, or at the place and the time they should have been delivered. For the purpose of determining the extent of Carrier's liability for loss of or damage to the Goods, the sound value of the Goods is agreed to be the invoice value plus Freight and insurance if paid.

(2) Multimodal Transport

(a) If the place of damage to or loss of the Goods is known, the responsibility of Carrier is determined by the law which applies to this leg of Carriage except in cases which are governed by Clause 5.1 (2) (d) below.

(b) If it is established that loss or damage occurred during the port-to-port leg the "Error in Navigation and Fire Defenses" as per Clause 5.1 (1) (c) apply.

(c) If it is established that loss or damage occurred during the port-to-port leg, Clause 5.1 (1) (d) shall apply.

(d) If part of the multimodal transport involves a shipment to or from the USA, US COGSA shall govern and apply from loading the Goods on the Vessel until discharge. US COGSA shall also govern and apply during all times before the Goods are loaded on or after they are discharged from the Vessel.

(e) The Convention on the Contract for the International Carriage of Goods by Road (CMR), dated May 19, 1956 and any amendments to this Convention and the International Agreement on Railway Transports (CIM), dated February 25, 1961 or any amendments to this or Agreement, apply to the extent that they apply compulsorily by law.

(f) Compensation will be calculated by reference to the value of the Goods at the time they were delivered to Carrier for Carriage.

(g) IF THE LAW WHICH IS APPLICABLE UNDER CLAUSE 5.1 (2) (a) IS NOT MANDATORY BUT PROVIDES FOR LIABILITY EXCEEDING 2 SDR PER KILOGRAM, THE MAXIMUM LIABILITY SHALL BE 2 SDR PER KILOGRAM OF THE GROSS WEIGHT OF THE GOODS LOST OR DAMAGED. SDR MEANS SPECIAL DRAWING RIGHTS AS DEFINED BY THE INTERNATIONAL MONETARY FUND. THIS SUB-SECTION (g) DOES NOT APPLY IF THE LOSS OR DAMAGE TO THE GOODS OCCURRED ON A SEA LEG.

(h) IF THE LEG OF CARRIAGE DURING WHICH LOSS OR DAMAGE OCCURRED IS NOT KNOWN, CARRIER'S MAXIMUM LIABILITY WILL NOT EXCEED 2 SDR PER KILOGRAM OF GROSS WEIGHT OF THE GOODS LOST OR DAMAGED HOWSOEVER ARISING.

(i) CARRIER IS NOT ENTITLED TO THE BENEFIT OF THE LIMITATION OF LIABILITY IN CLAUSE 5.1 (2) (g) AND (h) IF IT IS PROVED THAT THE DAMAGE RESULTED FROM AN ACT OR OMISSION OF CARRIER OR ITS SERVANTS OR AGENTS DONE WITH INTENT TO CAUSE DAMAGE, OR RECKLESSLY AND WITH KNOWLEDGE THAT DAMAGE WOULD PROBABLY RESULT.

(j) Subject to the applicable restrictions in applicable statutory law and international conventions, Carrier shall not be liable for damage or loss caused by 1. error in navigating or handling the Vessel, including errors caused by a pilot or by the arrangement of a group of tugs or pushers(Art. 25 (2) a) CMNI) or 2. fire or an explosion on board the Vessel, where it is not possible to prove that the fire or explosion resulted from a fault of the Carrier or their Servants or Agents or a defect of the Vessel (Art. 25 (2) b) CMNI).

(3) Notice Periods

Unless written notice of loss or damage is given to Carrier or its agent at the port of discharge:
- before or at the time of the removal of the Goods into the custody of the person entitled to delivery thereof under the contact of Carriage, or,
- where the loss or damage is not apparent at the time of removal of the Goods, within three (3) days for Port-to-Port Shipment, or seven (7) days for Multimodal Transport after such removal,

the removal is prima facie evidence of the delivery by Carrier as described in this Sea Waybill. Any such loss or damage which may have occurred to the Goods is deemed and agreed to be due to circumstances which are not the responsibility of Carrier. The written notice must clearly specify the damage. Notwithstanding the aforesaid, if a Container has been delivered to Merchant, Merchant must prove that the damage to or loss of the Goods did occur whilst the Container was in the custody of the Carrier.

5.2 Sundry Liability Provisions

(1) Hague Rules/Hague-Visby Rules

Without prejudice to rights under Clause 5.1 hereof, if suit is brought in a court other than the court as provided for in Clause 23, and Clause 23 is not enforced by Carrier or the court, then (a) if this Sea Waybill has been issued in a country where the Hague-Visby Rules are compulsorily applicable, Carrier's liability must not exceed 2 SDR per kilogram of the gross weight or 666.67 SDR per package of the Goods lost or damaged, whichever is higher, or (b) if this Sea Waybill has been issued in a country in which the Hague Rules apply, Carrier's liability must not exceed GBP 100 per package or unit.

(2) US COGSA

Notwithstanding Clause 5.2 (1), if the Sea Waybill covers a shipment to or from the USA, and suit is brought in a court other than as provided in Clause 23, and Clause 23 is not enforced by Carrier or the court, then US COGSA applies as per Clauses 5.1 (1) (b) or 5.1 (2) (d). Under US COGSA Carrier's maximum liability in respect to the Goods shall not exceed USD 500 per package or, where the Goods are not shipped in packages, USD 500 per customary freight unit unless the nature and value of the Goods has been declared by Merchant and inserted in writing on page 2 of the Sea Waybill and where the Merchant has paid the applicable ad valorem Freight rate set forth in Carrier's tariff.

(3) Shipper's declared value

Merchant agrees and acknowledges that Carrier has no knowledge of the value of the Goods and that compensation higher than that provided for herein cannot be claimed unless the nature and value of such Goods has been declared by Merchant, agreed by Carrier, and inserted into the Sea Waybill before shipment. In addition, the applicable ad valorem Freight rate as set out in Carrier's tariff must be paid in full prior to shipment. Any partial loss or damage to the Goods will be adjusted pro rata based on the declared value of the Goods. If the declared value of the Goods is higher than the actual value, Carrier is not liable to pay any compensation which is higher than the net invoice value of the Goods plus Freight and insurance if paid. Any references, when shown on page 2 of this Sea Waybill, to letters of credit, import licenses, sales contracts, invoices or order numbers and/or details of any contract to which Carrier is not a party do not amount to a declaration of value by the Merchant to the Carrier.

(4) Limitation of Liability

The Merchant acknowledges and agrees that Carrier is a person entitled to limit their liability under any Convention or Act pertaining to limitation of liability on maritime claims, whichever is applicable. Carrier may be the Vessel owner, charterer (including a slot- or space charterer), manager or operator of the Vessel, or salvor rendering services in connection with salvage operations. If any claims are made against the Servants or Agents, they are entitled to avail themselves of the same limitation of liability available to Carrier.

(5) Delay

(a) Unless expressly agreed otherwise, Carrier does not undertake that the Goods will arrive at the port of discharge or place of delivery at any particular time or to meet any particular market or use, and Carrier shall not be liable for any direct, indirect or consequential loss or damage (including but not limited to any loss of income or resale value) caused by delay.

(b) If Carrier will nevertheless be considered liable as per the law mandatorily governing a particular loss or damage resulting from delay, such liability shall not exceed three (3) times the Freight.

(c) Sub-section (b) does not apply if the law governing a particular loss or damage resulting from delay provides for a lower limitation amount.

(d) Clauses 5.2 (5) (a) and (b) do not apply if a delay was caused by an act or omission of Carrier or its Servants or Agents with the intent to cause damage, or recklessly or with knowledge that such damage would probably result.

(6) Scope of Application and Exclusions

(a) The rights, defenses, immunities, exemptions, limitations and liberties of whatsoever nature provided for in this Sea Waybill or under statute apply in any action against Carrier for loss or damage or delay, howsoever occurring and whether the action be founded under a relevant statute, in contract or in tort.

(b) Save as otherwise provided herein, Carrier is in no circumstances whatsoever and howsoever arising liable for any direct or indirect or consequential loss or damage or loss of business, income or profits, unless it is established that Carrier himself acted with the intent to cause damage, or recklessly and with knowledge that damage would probably result.

5.3 Change of Destination by Merchant, On-Carriage

If Merchant requests Carrier to deliver the Goods to a port or place other than the port of discharge or the place of delivery originally designated in this Sea Waybill or if Merchant requests on-carriage in addition to the original booking and provided that Carrier in its absolute discretion agrees to such request and any additional charges are paid by Merchant, such further Carriage will be undertaken on the basis that the Sea Waybill Terms and Conditions apply to such further Carriage as if the new destination agreed with Merchant had been entered on page 2 of this Sea Waybill as the port of discharge or place of delivery.

6. Time for Suit

In any event, Carrier shall be discharged from all liability in respect of loss of or damage to the Goods, non-delivery, mis-delivery, delay or any other loss or damage connected or related to the Carriage unless suit is brought within one (1) year after delivery of the Goods or the date when the Goods should have been delivered.

7. Shipper-Packed Containers

(1) If a Container was not packed by or on behalf of Carrier, Carrier is not liable for any loss of or damage to the Goods caused by:

(a) the manner in which the Goods were packed into the Container, or

(b) the unsuitability of the Goods for Carriage in the Container, or

(c) the unsuitability or defective condition of the Container or the incorrect setting of any refrigeration controls or ventilation settings thereof, provided that, if the Container has been supplied by or on behalf of Carrier, this unsuitability or defective condition would have been apparent upon inspection by Merchant at or prior to the time when the Container was packed, or

(d) packing refrigerated Goods that are not at the correct temperature for Carriage.

(2) Merchant shall indemnify Carrier against any loss, damage, liability or expense whatsoever and howsoever arising caused by one or more matters referred to in Clause 7 (1).

(3) With regard to temperature- or atmosphere-controlled Goods, Carrier shall be deemed to have fulfilled its obligations under the contract of Carriage and shall have no liability whatsoever if such Goods are carried in a range of plus or minus 2,5 °Celsius with regard to any temperature indicated on page 2 of this Sea Waybill. The term "apparent good order and condition" when used in this Sea Waybill with reference to the Goods which require refrigeration does not mean that the Goods when received were verified by Carrier as being at the temperature on page 2 of this Sea Waybill. Where a temperature is indicated Carrier undertakes that the Container supplied by the Carrier is equipped to maintain the temperature set by Merchant. Merchant remains responsible for the consequences of any temperature irregularities, including but not limited to the Goods being at a higher temperature upon loading into the Container than that required for the Carriage (hot stuffing), prior to receipt or after delivery by Carrier.

(4) Container with Goods packed by Merchant shall be delivered to Carrier with an intact high security seal (applicable ISO standard) in place, and the seal number provided to Carrier by Merchant. If the Container is not sealed accordingly, Carrier may, at Merchant's expense, return the Container to Merchant for resealing, or affix a seal.

8. Inspection of Goods

Carrier or any Servant or Agent or any other person authorized by Carrier shall be entitled, but under no obligation, to open any Container or package at any time and to inspect the Goods. If, by order of the authorities at any place, a Container has to be opened for the Goods to be inspected, Carrier will not be liable for any loss or damage incurred as a result of such opening, unpacking, inspection or repacking. Carrier shall be entitled to recover the costs of such opening, unpacking, inspection and repacking from Merchant.

9. Carriage Affected by Condition of Goods

If it appears at any time that, due to their condition, the Goods cannot safely or properly be carried further or without incurring additional expense or taking any measure(s) in relation to the Container or the Goods, Carrier may, without notice to Merchant, take any measure(s) and/or incur any additional expense to carry or to continue the Carriage thereof, and/or sell or dispose of or destroy the Goods, and/or abandon the Carriage and/or store them ashore or afloat, under cover or in the open, at any place, whichever Carrier, in its absolute discretion, considers most appropriate, which abandonment, storage, sale, disposal or destruction shall be deemed to constitute due delivery under this Sea Waybill. Merchant shall indemnify Carrier against any additional expense so incurred.

10. Description of the Goods and High Value Cargo

(1) The shipper warrants to Carrier that the particulars relating to the Goods as set out on page 2 have been checked by the shipper on receipt of this Sea Waybill and that such particulars, and any other particulars furnished by or on behalf of the shipper, are adequate and correct. The shipper also warrants that the Goods are lawful Goods and contain no contraband.

(2) Carrier is neither prepared to enter into a contract of Carriage nor to issue a Sea Waybill regarding High Value Cargo without Carrier's prior written consent to perform such a carriage. "High Value Cargo" shall consist of Goods with an invoice value of USD 2,000,000 or above. Carrier shall be discharged from all liability in respect of loss or damage to such Goods, non-delivery, delay or any other loss connected or related to the Carriage in case of failure to declare any High Value Cargo and seek Carrier's said consent.

11. Merchant's Responsibility

(1) All persons coming within the definition of Merchant are jointly and severally liable to Carrier for the fulfillment of all obligations, undertakings and warranties of Merchant either in this Sea Waybill, or as required by law. Merchant shall mitigate losses and shall indemnify Carrier against all claims, losses, damages, detention, demurrage, expenses, fines, costs and attorney fees, arising or resulting from any breach of these obligations, undertakings and warranties.

(2) It is shipper's sole responsibility to provide Carrier electronically or by other agreed means with the correct VGM of each Container prior to the deadline stipulated by Carrier (VGM cutoff time). If VGM is not so timely provided, Carrier is under no obligation to commence or continue Carriage of the Container, in which case:

(a) Carrier may store/re-weigh or return the Container to the shipper or its representative in its discretion at Merchant's cost.

(b) Any demurrage and storage fees resulting from breach of these obligations shall be for Merchant's account.

(c) Merchant shall also be liable for any resulting expenses, detention, fines, delay, loss or damage, costs and attorney fees.

(3) Merchant shall comply with all regulations or requirements of sanctions, customs, ports and/or other authorities, including but not limited to those relating to VGM, and shall bear and pay all duties, stamp duties, taxes, fines, imposts, expenses or losses (including Freight for any additional Carriage) incurred or suffered by reason of any failure to so comply, or by reason of any illegal, incorrect, or insufficient weighing, marking, number or addressing of the Goods or Containers or the discovery of any drugs, narcotics, stowaways or any illegal substances or il legal Goods within or connected to the Container packed by Merchant or inside Goods supplied by Merchant, and shall indemnify Carrier in respect thereof.

(4) If Containers supplied by or on behalf of Carrier are unpacked at Merchant's premises, Merchant is responsible for returning the empty Containers (free of any dangerous goods placards, labels or markings), with interiors cleaned, dry and odourless, to the point or place designated by Carrier, its Servants or Agents, within the time prescribed. Should a Container not be returned within the time prescribed in the tariff, Merchant shall be liable for any resulting detention and/or demurrage, loss or expenses.

12. ISPS Code

(1) Merchant shall comply with the requirements of the ISPS Code. If Carrier is held liable by any State Authority or any other third party Merchant shall indemnify and hold Carrier harmless from any damages resulting from the violation of the ISPS Code by Merchant.

(2) Merchant undertakes to pay Carrier any costs or expenses whatsoever arising out of or related to security regulations or measures required by the port facility or any relevant authority in accordance with the ISPS Code in relation to Merchant's Goods.

(3) Carrier is entitled to deviate the Vessel to a different port and to unload the Goods there if the authorities in the port of discharge have increased their level of security according to the ISPS Code after the Goods have been loaded.

(4) Merchant undertakes to compensate any costs and expenses suffered by Carrier because of a delay of the Vessel resulting from a violation of the ISPS Code by Merchant.

13. Freight

(1) Freight shall be deemed fully earned on receipt of the Goods by Carrier and shall be paid and non-returnable in any event.

(2) Freight has been calculated and shall be paid on the basis of particulars furnished by or on behalf of the shipper. If the particulars furnished by or on behalf of the shipper are incorrect, liquidated damages shall be paid to Carrier, in accordance with the applicable tariff.

(3) All Freight shall be paid without any set-off or counterclaim unless the claim is not in dispute or confirmed by final court decision.

(4) If Merchant fails to pay the Freight when due, it shall be liable for all costs, liquidated damages in accordance with the applicable tariff, interest which accrues until payment, reasonable attorney fees and expenses incurred in collecting any sums due to the Carrier.

14. Lien

Carrier shall have a lien on the Goods and any documents relating thereto for all sums payable by Merchant to Carrier under this or any other contract and for general average and/or salvage contributions, to whomsoever due. Carrier may exercise its lien at any time and in any place at its sole discretion, whether the contractual Carriage is completed or not. Carrier's lien shall extend to cover the cost and attorney fees of recovering any sums due. Carrier shall have the right to sell the Goods at public or private sale at the expense and without notice to Merchant. If the proceeds of this sale fail to cover the whole amount due, Carrier is entitled to recover the deficit from Merchant.

15. Optional Stowage and Deck Cargo

(1) The Goods may be packed by Carrier in Containers and consolidated with other goods in Containers.

(2) Goods, whether or not packed in Containers, may be carried on deck or under deck without notice to Merchant and Carrier shall not be required to note on the Sea Waybill any statement of on-deck Carriage. All Goods whether carried on deck or under deck, shall participate in general average and the Carriage of such Goods is subject to all terms and conditions of the Sea Waybill.

16. Methods and Routes of Carriage

(1) Carrier may at any time and without notice to Merchant:

(a) use any means of Carriage or storage whatsoever, including the utilization of railway, road vehicle, inland river or coastal barge services;

(b) transfer the Goods from one conveyance to another, including but not limited to transshipping or carrying on another Vessel or conveyance or by any other means of transport than that named on page 2;

(c) unpack and remove Goods which have been packed into a Container and forward them in a Container or otherwise;

(d) proceed by any route in its discretion (whether or not the nearest or most direct or customary or advertised route), at any speed, and proceed to or stay at any place or port whatsoever, once or more often and in any order;

(e) load or unload the Goods at any place or port (whether or not such port is named on page 2 as the port of loading or port of discharge) and store the Goods temporarily at any place or port whatsoever, once or more often and/or

(f) comply with any orders or recommendations given by any government or authority.

(2) The liberties set out in this Clause 16 may be invoked by Carrier for any purpose whatsoever, whether or not connected with the Carriage of the Goods, including loading or unloading other Goods, bunkering, undergoing repairs, adjusting instruments, picking up or landing any persons. Anything done in accordance with Clause 16 (1) or any delay arising therefrom shall be deemed to be: (i) within the contractual Carriage and shall not be a deviation and (ii) Carrier shall be entitled to full charges and any additional Freight, storage and all other expenses incurred by or on behalf of Carrier, all of which shall be due and owing from Merchant, and Carrier shall have a lien on the Goods for the same.

17. Matters Affecting Performance

If at any time the Carriage is or is likely to be affected by any hindrance, risk, danger, delay, difficulty or disadvantage of any kind including but not limited to labour disruption such as strike and lock-out, sanction, cyber security incident, pandemic, epidemic, congestion of ports or canals, war, civil commotion, political unrest, piracy, act of terrorism and threat thereof and howsoever arising (even though the circumstances giving rise to such hindrance, risk, danger, delay, difficulty or disad-vantage existed at the time this contract was entered into or when the Goods were received for the Carriage), then Carrier (whether or not the Carriage is commenced) may, at its sole discretion and without prior notice to Merchant, either:

(1) cancel bookings for Goods before they are loaded on the Vessel named on page 2 of this Sea Waybill; or

(2) carry the Goods to the contracted port of discharge or place of delivery, whichever is applicable, by an alternative route to that indicated on page 2 of this Sea Waybill or that which is usual for Goods consigned to that port of discharge or place of delivery and shall be entitled to charge such additional Freight; or

(3) suspend the Carriage of the Goods and store them ashore or afloat, under cover or in the open and endeavor to forward them as soon as reasonably possible and shall be entitled to charge such storage costs and additional Freight; or

(4) abandon the Carriage of the Goods and place them at Merchant's disposal at any place or port which Carrier may deem safe and convenient, whereupon the responsibility of Carrier in respect of such Goods shall cease. Merchant shall pay any additional costs of the Carriage to, and delivery and storage at, such place or port.

18. Dangerous Goods

(1) No Goods which are or may become dangerous, inflammable or damaging (including radio-active materials), shall be tendered to Carrier for Carriage without its express consent in writing, and without the Container as well as the Goods themselves being distinctly marked on the outside so as to indicate the nature and character of any such Goods and so as to comply with any applicable laws, regulations or requirements. If any such Goods are delivered to Carrier without such written consent and/or marking, or if in the opinion of Carrier the Goods are or are likely to become of a dangerous, inflammable or damaging nature, they may at any time be destroyed, disposed of, abandoned, or rendered harmless without compensation to Merchant.

(2) Merchant warrants that the Goods are sufficiently packed in compliance with all laws or regulations and requirements with regard to the nature of the Goods.

(3) Whether or not Merchant was aware of the nature of the Goods, Merchant shall indemnify Carrier against all claims, losses, damages or expenses, costs and fees, including attorney fees, arising in consequence of the Carriage of such Goods.

(4) Nothing contained in this Clause shall deprive Carrier of any of its rights provided for elsewhere.

19. Notification and Delivery

(1) Carrier shall not be obliged to give any notification of the arrival of the Goods to the Merchant hereunder.

(2) Merchant shall take delivery of the Goods within the time provided for in Carrier's applicable tariff.

(a) If Merchant fails to do so, Merchant shall either nominate an alternative receiver or accept a return shipment or organize the cargo disposal, failing which Merchant shall indemnify Carrier for all losses arising out of Merchant's refusal to remedy the situation. Carrier shall be entitled, without notice, to unpack the Goods if packed in Containers and/or to store the Goods ashore, afloat, in the open or under cover, at the sole risk of Merchant. Such storage shall constitute due delivery hereunder, and thereupon the liability of Carrier in respect of the Goods stored as aforesaid shall wholly cease.

(b) Merchant shall be responsible for the costs of such storage, as well as detention and demurrage and any other costs and expenses arising from or related thereto.

(3) If Merchant fails to take delivery of the Goods within thirty days of delivery becoming due under Clause 19 (2), or if in the opinion of Carrier they are likely to deteriorate, decay, become worthless or incur charges whether for storage or otherwise in excess of their value, Carrier may, without prejudice to any other rights which it may have against Merchant, without notice sell, destroy or dispose of the Goods and apply any proceeds of sale in reduction of the sums due to Carrier from Merchant. The Merchant shall indemnify Carrier against any claims made against the Carrier and/or Servants or Agents due to the sale, destruction or disposal of the said Goods.

(4) Without prejudice to an earlier termination by virtue of law or any other clause of this Sea Waybill the responsibility of Carrier shall cease and the Goods shall be considered to be delivered at their own risk and expense in every respect when taken into the custody of customs or other authorities.

20. General Average & Salvage

(1) General average to be adjusted in any currency at any place selected by Carrier and according to the York-Antwerp Rules 1994. Merchant shall provide security as may be required by the Vessel owner or the Carrier to cover the estimated contribution of the Goods and any salvage and special or particular charges thereon.

(2) Cargo contributions in general average shall be paid even if such general average results from fault, neglect or error of the master, pilot, officers or crew. The BIMCO New Jason Clause is hereby expressly incorporated and obtainable from Carrier or its agents upon request.

21. Both-to-Blame Collision

The BIMCO Both-to-Blame Collision Clause is hereby incorporated into this Sea Waybill and obtainable from Carrier or its agents upon request.

22. Validity and Carrier's Privacy Terms

(1) If anything herein contained is inconsistent with any applicable international convention or national law which cannot be departed from by private contract, the provisions hereof shall to the extent of such inconsistency but not further be null and void. Unless otherwise specifically agreed in writing between Merchant and Carrier, the terms and conditions of this Sea Waybill supersede any prior agreements between Merchant and Carrier.

(2) Carrier's Privacy Terms may be viewed at www.hapag-lloyd.com/en/meta/privacy-statement.html.

23. Law and Jurisdiction

Except as otherwise provided specifically herein any claim, dispute, suit or proceeding arising un-der this Sea Waybill and/or the contract between Carrier and the booking party shall be governed by German law and determined exclusively in the Hamburg courts. Carrier shall have the option to file a suit at Merchant's place of business.

L.V. 01/24 Printed 01/24

Hapag-Lloyd

Sea Waybill · Not Negotiable

Sea Waybill · Not Negotiable

Carrier: Hapag-Lloyd Aktiengesellschaft, Hamburg

Sea Waybill

Multimodal Transport or Port to Port Shipment

Ballindamm 25 - D-20095 Hamburg VAT-ID-No: DE813960018

Sea Waybill • Not Negotiable

Sea Waybill • Not Negotiable

Shipper:
NORTH AMERICAN FREIGHT FORWARDING INC.
556 BRYNE DRIVE, UNIT 20
L4N 9P6 BARRIE
CANADA

Consignee:
FORWARDER SEKO LOGISTICS NETWORK SRL, CARGO TERMINAL 2 (DSV BLDG) SRL, CALEA BUCURESTI 224 E HENRI COANDA INTL A/P, BUCHARGEST ILFOV, 75150, TEL: +40 735 872 048
EMAIL: BUH@SEKOLOGISTICS.COM

Notify Address (Carrier not responsible for failure to notify):
FORWARDER SEKO LOGISTICS NETWORK SRL, CARGO TERMINAL 2 (DSV BLDG) SRL, CALEA BUCURESTI 224 E HENRI COANDA INTL A/P, BUCHARGEST ILFOV, 75150, TEL: +40 735 872 048
EMAIL: BUH@SEKOLOGISTICS.COM

Vessel(s): GLASGOW EXPRESS
Voyage-No.: 50E38

Port of Loading: MONTREAL, QC

Port of Discharge: CONSTANTA

Carrier's Reference:	SWB-No.:	Page:
10274965	HLCUMTR260844242	2 / 3

Export References:
S26249514

Forwarding Agent:
NORTH AMERICAN FREIGHT FORWARDING INC., 556 BRYNE DRIVE, UNIT 20 BARRIE, ONTARIO, L4N 9P6

Consignee's Reference:

Place of Receipt: TORONTO, ON

Place of Delivery:

Container Nos., Seal Nos.; Marks and Nos.	Number and Kind of Packages, Description of Goods	Gross Weight:	Measurement:
HAMU 1639238 SEAL: 204677	1 CONT. 40'X8'X9'6" HIGH CUBE CONT. 18 SKID UNDERDRAIN INSTALLATION SYSTEM AND PARTS EXPRESS BILL OF LADING CERS: BC0012202609095582683 HS CODE: 8421.99, 3926.90, 4016.93, 7318.14 HBL #S26249514 "CARGO IN TRANSIT TO MOLDOVA"	SLAC* 5983.000 KGS	

*SLAC = Shipper's Load, Stow, Weight and Count

Shipper's declared Value [see clause 7(2) and 7(3)]

Total No. of Containers received by the Carrier:	Packages received by the Carrier:
1	
Movement: FCL/FCL	**Currency:**

Charge	Rate	Basis	aWt/Vol/Val	P/C	Amount

Total Freight Prepaid	Total Freight Collect	Total Freight

Above Particulars as declared by Shipper. Without responsibility or warranty as to correctness by Carrier [see clause 11]

RECEIVED by the Carrier from the Shipper in apparent good order and condition (unless otherwise noted herein) the total number or quantity of Containers or other packages or units indicated in the box opposite entitled "Total No. of Containers/Packages received by the Carrier" for Carriage subject to all the terms and conditions hereof (INCLUDING THE TERMS AND CONDITIONS ON THE REVERSE HEREOF AND THE TERMS AND CONDITIONS OF THE CARRIER'S APPLICABLE TARIFF) from the Place of Receipt or the Port of Loading, whichever is applicable, to the Port of Discharge or the Place of Delivery, whichever is applicable. One original Bill of Lading, duly endorsed, must be surrendered by the Merchant to the Carrier in exchange for the Goods or a delivery order. In accepting this Bill of Lading the Merchant expressly accepts and agrees to all its terms and conditions whether printed, stamped or written, or otherwise incorporated, notwithstanding the non-signing of this Bill of Lading by the Merchant.

IN WITNESS WHEREOF the number of original Bills of Lading stated below all of this tenor and date has been signed, one of which being accomplished the others to stand void.

Place and date of issue:
MONTREAL, QC SEP.18.2026

Freight payable at:
ORIGIN

FOR ABOVE NAMED CARRIER
HAPAG-LLOYD (CANADA) INC.
(AS AGENT)

Cont/Seals/Marks	Packages/Description of Goods	Weight Measure
	18 SKID	5983.000 KGS

SHIPPED ON BOARD, DATE : SEP.18.2026
PORT OF LOADING: MONTREAL, QC
VESSEL NAME: GLASGOW EXPRESS VOYAGE: 50E38

The Merchant undertakes and warrants that, under no circumstances, shall the Goods and/or Containers listed in this Bill of Lading (i) originate from, be stuffed in, or be on-carried from the territory of the Russian Federation or the Republic of Belarus or the Islamic Republic of Iran prior to loading at the port of loading, nor (ii) be destined for or on-carried to the territory of the Russian Federation or the Republic of Belarus or the Islamic Republic of Iran following unloading at the port of discharge.

ORIGIN HAULAGE CHARGES PREPAID
ORIGIN PORT CHARGE PREPAID
SEA FREIGHT PREPAID
DESTINATION PORT CHARGE COLLECT